# Policy Barriers:

# IMMIGRANT HEALTH ACCESS IN THE UNITED STATES

**Prepared for: Coalition for Humane Immigrant Rights (CHIRLA)**

## THE ISSUE

- Immigrant access to healthcare is shaped by federal policy restrictions, not just individual factors. Laws such as the Personal Responsibility and Work Opportunity Reconciliation Act (PRWORA, 1996), Affordable Care Act (ACA) exclusions, and immigration-related enforcement fears create structural barriers to timely and affordable care.
- Immigrants are nearly three times more likely to be uninsured than U.S.-born individuals (Kaiser Family Foundation [KFF], 2023).

## KEY POLICIES AND BARRIERS

### Eligibility Restrictions: PRWORA, 1996

- PRWORA created major restrictions on immigrant eligibility for public programs, including a 5-year waiting period for Medicaid eligibility for many lawfully present immigrants.
- These restrictions exclude many low-income immigrants from public insurance coverage. Nearly 45% of lawfully present immigrant adults remain ineligible for Medicaid (Migration Policy Institute, 2022).

### Public Charge & Enforcement Fear: Chilling Effects on Healthcare Access

- Public charge confusion and fear of immigration enforcement can discourage immigrant families from using healthcare systems, insurance, or public benefits, even when they are eligible. These concerns may include fear that benefit use could harm future immigration applications or that personal information could be shared with immigration authorities.
- One in six immigrant adults report avoiding benefits due to policy-related fears (KFF, 2023), and immigration enforcement concerns can lead to delayed or avoided care and reduced use of preventive services (Hacker et al., 2021).

### Affordable Care Act: ACA Exclusions

- Undocumented immigrants are excluded from purchasing insurance through ACA marketplaces and cannot receive federal subsidies.
- This creates structural gaps in access to preventive care, primary care, and treatment for ongoing health needs.

## WHY THIS MATTERS

- Policy barriers to immigrant healthcare access can lead to:
  - Delayed diagnosis and treatment
  - Increased reliance on emergency care
  - Higher long-term healthcare costs
  - Reduced use of preventive services
  - Reinforced health inequities among vulnerable populations
- Immigration status functions as a structural determinant of health, shaping who can access care, when they receive it, and how safe they feel using health services (HHS, 2023).

# POLICY SOLUTIONS

- **Remove Medicaid Eligibility Restrictions**
  - Amend PRWORA to remove the 5-year Medicaid waiting period and reduce immigration-status-based exclusions from public health coverage.
- **Expand ACA Access**
  - Allow undocumented immigrants to purchase ACA marketplace coverage and access affordable insurance options.
- **Reduce Public Charge Confusion**
  - Provide clear, multilingual information so eligible families understand which healthcare and public benefits they can safely use.
- **Protect Healthcare Spaces**
  - Create “safe access” protections so clinics, hospitals, and enrollment programs are not used for immigration enforcement or routine immigration-related data sharing.
- **Invest in Community-Based Programs**
  - Fund trusted enrollment, navigation, and health education programs for undocumented, mixed-status, lawfully present, and newly arrived families.

# WHAT ADVOCATES CAN DO

- Advocates, students, healthcare workers, and community members can:
  - Contact local, state, and federal representatives to support expanded immigrant healthcare access.
  - Support policies that remove Medicaid and ACA eligibility restrictions.
  - Share accurate, multilingual information about public charge and healthcare eligibility.
  - Partner with trusted community organizations already serving immigrant families.
  - Use fact sheets, testimony, letters, public comments, and community education to support immigrant health equity.

# CALL TO ACTION

- Immigrant health access is a public health issue, not only an immigration issue. To reduce health inequities, advocates should push for policies that expand healthcare eligibility, protect healthcare spaces from immigration enforcement, and fund trusted community-based programs for immigrant and mixed-status families.
- **Take action**: Share this fact sheet, contact elected officials, support immigrant rights organizations, and advocate for healthcare access regardless of immigration status.

SOURCES
- Kaiser Family Foundation. (2023). Key facts on health coverage of immigrants.
- Migration Policy Institute. (2022). Medicaid access and eligibility for immigrants.
- Hacker et al. (2021). The impact of immigration enforcement on immigrant health.
- U.S. Department of Health and Human Services. (2023). Health equity and immigrant populations.